

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

KEITH GLEN RICHARDSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
MANUEL SANCHEZ (SHIELD # 23416), and
POLICE OFFICER MICHAEL LEONE (SHIELD #
24122),

Defendants.

Index No.:

Date of Filing:

Summons

The basis of venue is:

*CPLR § 504(3) County Within
City of New York Where Cause
of Action Arose*

TO THE ABOVE-NAMED DEFENDANTS:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a Notice of Appearance on the plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service, or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Queens, New York
November 22, 2017



SGOURAS LAW FIRM PLLC.

A. Tommy Sgouras, Esq.

Attorneys for the Plaintiff

32-75 Steinway Street, Suite 207

Astoria, New York 11103

Tel: (646) 345-7674

Fax: (646) 585-1381

TO: CITY OF NEW YORK
New York City Law Department
100 Church Street
New York, New York 10007

P.O. MANUEL SANCHEZ

P.O. MICHAEL LEONE

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

KEITH GLEN RICHARDSON,

*Plaintiff,**-against-*THE CITY OF NEW YORK, POLICE OFFICER
MANUEL SANCHEZ (SHIELD # 23416), and
POLICE OFFICER MICHAEL LEONE (SHIELD #
24122),*Defendants.*

Index No.:

**VERIFIED
COMPLAINT**

The Plaintiff KEITH GLEN RICHARDSON (hereinafter the “plaintiff”) complaining of the above captioned Defendants, THE CITY OF NEW YORK, POLICE OFFICER MANUEL SANCHEZ (SHIELD #23416), and POLICE OFFICER MICHAEL LEONE (SHIELD # 24122) (hereinafter collectively referred to as the “defendants”) by his attorneys, SGOURAS LAW FIRM PLLC., hereby alleges upon information and belief that:

1. At all times mentioned herein, the plaintiff was and remains a resident of the State of New York, County of New York.
2. Upon information and belief, and at all times mentioned herein, the defendant, City of New York (hereinafter referred to as the “CITY”), was and remains a body corporate and politic, constituting a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. Upon information and belief, and at all times mentioned herein, defendant CITY maintains the New York City Police Department (hereinafter referred to as the “NYPD”), pursuant to law.

4. Upon information and belief, and at all times mentioned herein, the NYPD was and remains under the supervision and control of the defendant CITY.

5. At all times mentioned herein, Defendant Police Officer Manuel Sanchez - Shield # 23416 (hereinafter referred to as "PO SANCHEZ") was an NYPD police officer¹ employed by the City.

6. At all times mentioned herein, PO SANCHEZ was assigned to and/or under the command of the Transit Division District 4.

7. PO SANCHEZ is sued in his individual and official capacity.

8. At all times mentioned herein, Defendant Police Officer Michael Leone - Shield #24122 (hereinafter referred to as "PO LEONE") was an NYPD police officer employed by the defendant CITY.

9. PO LEONE is sued in her individual and official capacity.

10. At all times mentioned herein, PO LEONE was assigned to and/or under the command of the Transit Division District 4.

11. Upon information and belief, and at all times mentioned herein, the CITY was charged with the hiring, training, retention, direction, supervision, discipline, oversight, appointment and promotion of NYPD officers, supervisors and staff in their employ, including but not limited to PO SANCHEZ and PO LEONE (hereinafter collectively referred to as "the defendant police officers").

12. Upon information and belief, and at all times mentioned herein, the CITY and

¹ As used herein, the term "police officer" is intended to refer to New York City Police Department officers in the general and not to any specific rank, title or position.

NYPD, their agents, servants and/or employees, managed, supervised, directed and/or controlled the custody, confinement, care and treatment of those persons arrested, confined and/or otherwise detained by NYPD officers, including but not limited to the plaintiff.

STATEMENT OF FACTS

13. On or about August 23, 2016, at approximately 7:05am., in the vicinity of the Union Square East & East 14th Street subway station in the County and State of New York, the Claimant was lawfully within the subject premises when two plain-clothes police officers, upon information and belief identified as Police Officer Manuel Sanchez (Shield 23416) and Police Officer Michael Leone (Shield 24122), of the City of New York and New York City Police Department, unlawfully stopped, questioned and frisked Claimant without cause. Claimant was then extra-judiciously arrested by officers of the City of New York and New York City Police Department, and falsely detained, assaulted, battered, confined and imprisoned for approximately two (2) days by the City of New York, New York City Police Department, their agents, servants and employees. Due to false and perjurious statements made by Police Officer Manuel Sanchez (Shield 23416) and Police Officer Michael Leone (Shield 24122) on or about August 23, 2016, Claimant was falsely arrested and charged with purported violations of N.Y.P.L. 265.02(1)

14. On August 23, 2016, defendant police officers did not have probable cause to arrest plaintiff.

15. On August 23, 2016, defendant police officers did not have a warrant to arrest plaintiff.

16. At the time of the aforesaid use of force, plaintiff was not a threat, immediate or

otherwise, to the defendant police officers or the public.

17. Plaintiff spent approximately two (2) days in police custody.

18. As a result of the foregoing, plaintiff suffered physical, psychological and emotional injuries, loss of liberty, and pecuniary loss.

19. On or about November 21, 2016, a Notice of Claim was timely filed against the City of New York setting forth the time, place and manner in which plaintiff's injuries were sustained, was duly filed with the City of New York.

20. A least thirty (30) days have elapsed since the service of such notice; that adjustment or payment thereof has been neglected or refused, although same was duly demanded; and this action has been commenced within one year and ninety days after the happening of the subject occurrence.

21. A hearing pursuant to General Municipal Law §50-h was completed.

**AS AND FOR A FIRST CAUSE OF ACTION:
ASSAULT AND BATTERY**

22. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs "1" through "21", inclusive of this Complaint, as if same were fully set forth herein.

23. As set forth above, Plaintiff was assaulted and battered by PO SANCHEZ.

24. As set forth above, Plaintiff was assaulted and battered by PO LEONE.

25. The aforesaid assault and battery was excessive, unnecessary, unprovoked, unjustified, and unlawful.

26. As a result of the foregoing, Plaintiff was subjected to a deprivation of rights, physical, psychological and emotional injuries, pain and suffering, pecuniary loss, and has been otherwise damaged thereby.

**AS AND FOR A SECOND CAUSE OF ACTION:
FALSE ARREST**

27. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs “1” through “26”, inclusive of this Complaint, as if same were fully set forth herein.

28. On August 23, 2016, and at all times hereinafter mentioned, PO SANCEHZ and PO LEONE were working within the scope of their employment and authority with the CITY and NYPD when they arrested and confined the plaintiff.

29. On August 23, 2016, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause, not based on reasonable grounds, and not founded upon an arrest warrant.

30. As a result of the aforesaid false arrest and confinement, plaintiff sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit, and suffered emotional and physical distress and injuries.

31. By reason of the foregoing the plaintiff sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION:
FALSE IMPRISONMENT**

32. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs “1” through “31”, inclusive of this Complaint, as if same were fully set forth herein.

33. On August 23, 2016, and at all times hereinafter mentioned and upon information and belief, PO SANCHEZ and PO LEONE were acting within the scope of their employment with the CITY when, without justification or probable cause, they imprisoned the plaintiff.

34. PO SANCHEZ and PO LEONE, while acting within the scope of their employment with the CITY and NYPD, intentionally confined the plaintiff against his will and said confinement was not privileged.

35. As set forth above, the defendants' arrest, imprisonment and prosecution of plaintiff was malicious, unlawful and not based upon a proper warrant, probable cause or legal justification to seize the person and/or property of the plaintiff, and was therefore an unlawful arrest, detention, imprisonment, and prosecution.

36. By reason of the foregoing, plaintiff sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION:
MALICIOUS PROSECUTION**

37. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs "1" through "36", inclusive of this Complaint, as if same were fully set forth herein.

38. On August 23, 2016, at all times hereinafter mentioned and upon information and belief, PO SANCHEZ and PO LEONE, while acting within the scope of their employment with the CITY and NYPD, without justification and without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

39. On August 23, 2016, and at all times hereinafter mentioned and upon information and belief, PO SANCHEZ and PO LEONE, while acting within the scope of their employment with CITY and NYPD, maliciously prosecuted the plaintiff.

40. On August 23, 2016, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities, and suffered emotional and physical distress and injury.

41. The defendants, their agents, servants and/or employees, including but not limited to the defendant police officers, knew or should have known through the exercise of reasonable care and proper police procedure that the purported investigation into this matter was flawed and incomplete.

42. The defendants, their agents, servants and/or employees, including but not limited to the defendant police officers, willfully, negligently and wrongfully continued to prosecute the Plaintiff for alleged violations of the Penal Law of the State of New York even though the defendants knew or should have known of facts and circumstances that would have lead a reasonably prudent police officer to conclude that the criminal complaint upon which said criminal prosecution was based, contained material falsehoods and was otherwise incomplete and improper, and that the continued prosecution of the plaintiff was, therefore, improper under the circumstances.

43. As set forth above, PO SANCHEZ and PO LEONE intentionally, knowingly, recklessly, negligently, and with malice caused the commencement of a criminal prosecution against plaintiff in the Criminal Court of the City of New York, County of New York, upon the filing of an accusatory instrument without probable cause.

44. In commencing and continuing the said malicious prosecution, PO SANCHEZ and PO LEONE caused Plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York

45. By reason of the foregoing, plaintiff sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION:
NEGLIGENCE**

46. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs “1” through “45”, inclusive of this Complaint, as if same were fully set forth herein.

47. The defendants were negligent in the instance in their hiring, training, appointment, supervision and promotion of the defendant police officers and their supervisors; in failing to protect the safety, health and welfare of the plaintiff; in setting a trap for the plaintiff; in violating the plaintiff's civil, statutory and common law rights; in infringing upon the freedoms afforded to the plaintiff; in unlawfully entering plaintiff's home without a warrant, probable cause, or exigent circumstances; in failing to protect plaintiff; in causing, creating and/or allowing unlawful conditions to be and remain; in failing to give the plaintiff notice and/or warning; in causing and/or allowing the plaintiff to be injured; in causing and creating a dangerous condition conducive to causing injury; in creating and allowing a nuisance to exist; in failing to provide for the safety of the plaintiff; in failing to protect the plaintiff in each and every instance set forth above; in causing, permitting and/or allowing the plaintiff to be assaulted and battered; in arresting plaintiff without probable cause and under false pretenses; in detaining and/or imprisoning plaintiff without legal cause; in causing, permitting and/or allowing the plaintiff to be falsely arrested, falsely imprisoned and maliciously prosecuted; and the defendants were otherwise negligent, careless and reckless in the instance.

48. As a result of the foregoing, plaintiff was caused to suffer physical, psychological and emotional injuries, pain and suffering, pecuniary loss, and has been otherwise damaged.

**AS AND FOR A SIXTH CAUSE OF ACTION:
VIOLATION OF NEW YORK CONSTITUTION AND STATUTES**

49. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs "1" through "48", inclusive of this Complaint, as if same were fully set forth herein.

50. As set forth above, plaintiff was deprived by defendants of his rights to free speech and association, to be free from unlawful search and seizure, to be free from gratuitous and excessive force and punishment, to be free from cruel and unusual punishment, to be free from retaliation and retribution, and to due process of law, as guaranteed to her by the constitution and statutes of the City and State of New York and the Charter of the City of New York.

51. The aforesaid violations, and the failures of the City and its supervisory personnel to take appropriate steps to curb the widespread pattern of same or similar conduct by their officers violated plaintiff's rights under the New York State Constitution.

52. The defendants' conduct complained of herein violated plaintiff's rights secured by the Constitution of the State of New York, Article 15 of the New York State Executive Law ("NYS Human Rights Law"), Section 40 *et seq.* of the New York State Civil Rights Law (the "NYS Civil Rights Law"), New York Corrections Law, and Sections 8-107 *et seq.*, 8-502 *et seq.* and 8-603 *et seq.* of the Administrative Code of the City of New York (the "City Human Rights Law")

53. As a result of the foregoing, plaintiff was caused to suffer physical, psychological and emotional injuries, pain and suffering, pecuniary loss, and has been otherwise damaged.

**AS AND FOR A SEVENTH CAUSE OF ACTION:
VIOLATION OF CIVIL RIGHTS**

54. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs "1" through "53", inclusive, of this Complaint, as if same were fully set forth herein.

55. The actions of defendants heretofore described resulting from the October 1, 2015, false arrest, detention, and imprisonment of the plaintiff constitutes an unlawful arrest, imprisonment, and unreasonable search and seizure, which deprived plaintiff of his right, privileges and immunities as granted under the United States Constitution, Amendments One, Four, Five and Fourteen, the New York State Constitution, the Civil Rights Act, 42 U.S.C. § 1981, 1983, 1985, 1986 and 1988, and the complained of conduct was either the result of an official policy or unofficial custom, including but not limited to, the policies and customs concerning the hiring, training, supervision, retention and discipline of THE CITY and NYPD's agents, servants and/or employees.

56. Defendants established a custom, policy and/or practice of encouraging, approving and/or tolerating the use by the NYPD of unreasonable searches and seizures, excessive force and acts of misconduct against civilians and subsequent attempts to conceal such actions by failing to adequately train, supervise and discipline its agents, employees and officers.

57. Defendants were deliberately indifferent to the use of improper procedures in the detention and arrest of civilians and established a custom or policy and/or practice of encouraging, approving and/or tolerating the use of said improper procedures by the NYPD and subsequent attempts to conceal such actions by failing to adequately train, supervise and discipline their agents, servants and/or officers.

58. Defendants have deprived plaintiff of his liberty in violation of his Civil and Constitutional rights as set forth in the United States Constitution, 42 U.S.C. § 1983 and Constitution of the State of New York.

59. Defendants conspired with each other and acted in concert to discriminate against and deprive the plaintiff of his Constitutional and Civil rights.

60. Defendants established a custom, policy and/or practice of encouraging, approving and/or tolerating the use by the NYPD of unreasonable searches and seizures, and acts of misconduct against civilians and subsequent attempts to conceal such actions by failing to adequately train, supervise and discipline its agents, employees and officers.

61. Defendants were deliberately indifferent to the use of improper procedures in the detention and arrest of civilians and established a custom or policy and/or practice of encouraging, approving and/or tolerating the use of said improper procedures by the NYPD and subsequent attempts to conceal such actions by failing to adequately train, supervise and discipline their agents, servants and/or officers.

62. Defendants have deprived plaintiff of his liberty in violation of his Civil and Constitutional rights as set forth in the United States Constitution, 42 U.S.C. § 1983 and Constitution of the State of New York.

63. Defendants conspired with each other and acted in concert to discriminate against and deprive the plaintiff of his Constitutional and Civil rights.

64. The supervisors and policy making officers, defendants, THE CITY and NYPD, and defendants, PO SANCHEZ and PO LEONE, aided in the unlawful arrest of the plaintiff on August 23, 2016, as a matter of policy are deliberately indifferent to said practices and have failed to take steps to terminate the herein above detailed practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.

65. The defendants THE CITY and NYPD have failed to properly or effectively train its agents, servants and/or employees, including defendants, PO SANCHEZ and PO LEONE

who aided in the unlawful arrest of plaintiff on August 23, 2016 with regard to proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.

66. The defendant CITY and NYPD, have sanctioned the policy and practices heretofore described through their deliberate indifference to the effects of such policy and practices upon the constitutional rights of the plaintiff and others similarly situated.

67. The defendants' motivations were in contravention of the United States Constitution and the Constitution of the State of New York.

68. That the unlawful conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York: (a) the right of plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and (b) the right of plaintiff to not be deprived of life, liberty or property without due process of law; and (c) the right of plaintiff to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

69. By reason of the foregoing, the plaintiff has been damaged and suffered serious and severe permanent physical injuries, emotional distress and emotional harm as a result of these deprivations of constitutional and civil rights.

70. As a result, the defendants became liable to the plaintiff in an amount to be determined by the trier of fact, but exceeding the jurisdictional limitations of all lower courts.

71. As a result of the foregoing, plaintiff is entitled to compensatory damages, together with attorney's fees, costs, expert's fees, and disbursements.

**AS AND FOR AN EIGHTH CAUSE OF ACTION:
INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS**

72. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs “1” through “71”, inclusive, of this Complaint, as if same were fully set forth herein.

73. The conduct of the defendant police officers was intentional, malicious and excessive, and served no reasonable or legitimate police interest.

74. The conduct of the defendant police officers was negligent and served no reasonable or legitimate police interest.

75. The defendants’ intentional, reckless and/or negligent conduct constituted misconduct of an egregious and outrageous nature that exceeds all bounds usually tolerated by society and unreasonably endangered plaintiff’s physical safety.

76. As a result of the foregoing, plaintiff suffered and continues to suffer severe and serious emotional injuries.

77. This action falls within one or more of the exceptions set forth in CPLR §1602.

WHEREFORE, Plaintiff requests compensatory damages against all defendants in an amount to be determined at trial, punitive damages against the individual defendants in an amount to be determined at trial, attorney’s fees, costs and disbursements pursuant to law, and such other and further relief as this Court deems just and proper.

Dated: Queens, New York
November 22, 2016



SGOURAS LAW FIRM PLLC.
A. Tommy Sgouras, Esq.

Attorneys for the Plaintiff
32-75 Steinway Street, Suite 207
Astoria, New York 11103
Tel: (646) 345-7674
Fax: (646) 585-1381

ATTORNEY VERIFICATION

I A. Tommy Sgouras, Esq. an attorney duly licensed to practice in the Courts of the State of New York, hereby affirm the following under penalties of perjury:

That I am a Member of the law firm of SGOURAS LAW FIRM PLLC., attorneys for the Plaintiff, KEITH GLEN RICHARDSON, in the within action.

I have read the foregoing COMPLAINT and know the contents thereof; the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief, and as to those matters, I believe them to be true.

The reason that this Verification is made by me and not by the Plaintiff is that said Plaintiff is not presently within the County in which the Affirmant's office is located.

The grounds of my belief as to all matters stated upon my own knowledge are as follows; the records, reports, contracts, and documents contained in the Plaintiff's file.

Affirmed to this
22 November 2017



**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

KEITH GLEN RICHARDSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
MANUEL SANCHEZ (SHIELD # 23416), and
POLICE OFFICER MICHAEL LEONE (SHIELD #
24122),

Defendants.

Index No.:

Summons and Verified Complaint

SGOURAS LAW FIRM PLLC

Attorney for the Plaintiff

32-75 Steinway Street, Suite 207

Astoria, New York 11103

T (646) 345-7674

F (646) 585-1381

I, Athanasios Tommy Sgouras, Esq., certify that to the best of my knowledge, upon information and belief, formed after an inquiry reasonable under the circumstances, certify that the presentation of the foregoing paper or the contentions therein are not frivolous as defined in subsection (c) of Section 130.01 of the Rules of the Chief Administrator of the Courts.

Dated: Queens, New York
November 22, 2017



A. Tommy Sgouras, Esq.